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|   |                                                                                                       | <p>nor do they arise wholly from Defendants filing their lawsuit. Thus, Defendants have failed to establish the first prong and their motion fails.</p> <p><u>Attorney's Fees</u></p> <p>"If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (Code Civ. Proc., § 425.16(c)(1).)</p> <p>The Court finds Defendants had a good faith argument that their claims were more similar to <i>Equilon</i> and <i>CKE</i> than <i>Cotati</i> and, thus, the Motion was not frivolous or filed solely for the purpose of delay. The delay in discovery was incidental or merely one factor contributing to the filing of the Motion. Therefore, Plaintiffs' request attorney's fees is denied.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 7 | <p><b>25-01524396</b></p> <p><b><i>Livers vs. Beamer</i></b></p>                                      | <p><b>Motion to Set Aside/Vacate Default</b></p> <p>Defendant Tyson Beamer's Motion to Set Aside Default is MOOT in light of this Court signing the parties' stipulation to set aside default.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 8 | <p><b>20-01146344</b></p> <p><b><i>Mena vs. 3711 West Balboa Blvd Homeowners' Association</i></b></p> | <p><b>Motion for Attorney Fees</b></p> <p>Plaintiff's Motion for Post-Judgment Attorney Fees and Costs on Appeal against Defendant Christopher P. Schroeder is GRANTED.</p> <p><u>Procedural History:</u></p> <p>This Court entered judgment on the arbitration award in favor of Plaintiff against Defendant Schroeder on 1/30/24. The judgment included monetary damages and non-monetary relief and provided interest of 10% per annum would accrue until the judgment was paid. Defendant appealed and the appellate court issued an opinion affirming the judgment on 12/4/25.</p> <p>The appellate court stated Plaintiff is "to recover her costs (including attorney fees) incurred on appeal. The trial court is directed to award [Plaintiff] <i>all</i> reasonable fees and costs on appeal." (Opinion, p. 19, emphasis in original.) The opinion directed this Court to "award [Plaintiff] all reasonable attorney fees and costs incurred on appeal including but not limited to those fees incurred responding to this court's order regarding sanctions, and those fees incurred after this opinion is filed." (Id. at p. 18.)</p> <p>Plaintiff now moves for an order that Defendant Schroeder pay (1) attorney fees on appeal totaling \$49,648.50, (2) costs of \$729.25, (3) post-judgment interest of \$35,997.76, and (4) fees incurred in related bankruptcy proceedings totaling \$41,101.00.</p> <p><u>Legal Standard:</u></p> <p>A party seeking an award of fees has the burden of establishing entitlement to an award, and of documenting the appropriate hours</p> |

spent, and the hourly rates. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v Nunez* (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney's fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.)

Fees and Costs on Appeal:

The Court of Appeal directed this Court to award Plaintiff "*all*" her reasonable fees incurred responding to Defendant Schroeder's appeal, which the appellate court found was frivolous and sanctionable.

Plaintiff's counsel declares their firm spent 100.3 hours at \$495/hour defending the judgment and responding to Defendant's appeal. (Clark Decl., ¶ 4.) Counsel's billing records are attached as Exhibit F. The billing records contain extensive detail regarding the work performed and do not reflect excessive block billing. They also reflect counsel's reduction of hours for certain work.

Defendant's objections to counsel's billing as duplicative, block billing, and non-compensable are not persuasive. A party cannot litigate tenaciously and then be heard to complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.) Here, Defendant chose to pursue a frivolous appeal and Plaintiff's counsel has demonstrated the request for attorney fees is based on reasonably detailed billing related to responding to the appeal at rates which are reasonable in the Orange County legal community for similar work.

Defendant does not object to Plaintiff's costs on appeal.

The motion is granted as to Plaintiff's fees on appeal in the amount of \$49,648.50 plus costs of \$729.25.

Bankruptcy Fees:

Plaintiff seeks to recover fees incurred in Defendant Schroeder's Chapter 13 bankruptcy case, which was dismissed after six months. (Clark Decl., ¶ 6.) Plaintiff's counsel declares this work was necessary to protect the judgment from discharge. (Clark Decl., ¶¶ 6-7, Exs. G & H.) Bankruptcy counsel billed between \$390-\$650/hour.

The Bankruptcy Court's order and notice of dismissal stated in part, "Based on debtor's request, IT IS ORDERED THAT: (1) debtor's bankruptcy case is dismissed; and (2) the court retains jurisdiction on all issues involving sanctions, any bar against being a debtor in bankruptcy, all issues arising under Bankruptcy Code §§ 105, 109(g), 110, 329, 349, and 362, and to any additional extent provided by law." (Plaintiff's Ex. G.)

Defendant objects that Plaintiff has not cited legal authority allowing this Court to award bankruptcy fees or shown that such fees were reasonably incurred enforcing the judgment.

In reply, Plaintiff further explains that Defendant filed bankruptcy proceedings which stayed the appeal. Her bankruptcy counsel's work was necessary to ensure Defendant could not avoid the lien for judgment, and counsel's work resulted in Defendant's dismissal of the bankruptcy proceeding.

Plaintiff cites Code of Civil Procedure section 685.040, which provides,

"The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

Plaintiff also cites *Jaffe v. Pacelli* (2008) 165 Cal.App.4th 927 (*Jaffe*). (Reply, p. 4.) In *Jaffe*, the judgment debtor attempted to discharge the judgment debt in bankruptcy court. (*Id.* at 929.) The bankruptcy case was dismissed as a result of the efforts taken by the judgment creditor..." (*Ibid.*) The appellate court stated, "we hold that Jaffe's efforts taken in the bankruptcy court, and in related proceedings, were incurred to enforce the superior court judgment. Thus, Code of Civil Procedure section 685.040 (Section 685.040) entitles Jaffe to a postjudgment order awarding him compensation for the attorney fees and costs expended in those proceedings." (*Ibid.*)

Plaintiff has shown that under *Jaffe* and section 685.040, she is entitled to recover bankruptcy counsel's fees which were required to avoid discharge of the judgment in bankruptcy proceedings. Plaintiff's bankruptcy counsel's hourly rates were within a reasonable range and their billing records are reasonably detailed to demonstrate the bills were necessarily incurred defending the judgment. (Ex. H.)

Again, Defendant cannot make meritless efforts to avoid the judgment in bankruptcy court and then complain when Plaintiff seeks compensation for fees incurred responding to such tactics.

Therefore, Plaintiff's request for attorney fees incurred in the related bankruptcy proceeding is granted in the amount of \$41,101.00.

Post-Judgment Interest:

Plaintiff seeks an award of post-judgment interest totaling \$35,997.76 pursuant to the judgment entered on 1/30/24, which stated Plaintiff shall recover interest at 10% per annum from the date of judgment until paid.

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|           |                                                                                        | Defendant's opposition does not respond to this request. Plaintiff is entitled to collect post-judgment interest pursuant to the judgment, which will continue to accrue until paid.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>10</b> | <b>25-01498068</b><br><br><b>Miller vs. 1</b>                                          | <p><b>1) Motion to Compel Deposition (Oral or Written)</b><br/><b>2) Motion to Compel Deposition (Oral or Written)</b></p> <p>Plaintiff James Miller's motion to compel third-party witnesses, Joe Collinsworth and Christine Collinsworth, to comply with the Deposition Subpoena for Personal Appearance and Production of Documents and Things is CONTINUED to _____.</p> <p>California Rules of Court, rule 3.1346 states: "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record."</p> <p>Here, Plaintiff has failed to show that the moving papers were personally served on Joe Collinsworth and Christine Collinsworth as required by California Rules of Court, rule 3.1346. The Proof of Service attached to the Motion shows that the moving papers were served on Joe and Christine Collinsworth by mail. Plaintiff has not shown that Joe and Christine Collinsworth agreed to accept service by mail, accordingly, service was insufficient pursuant to rule 3.1346.</p> <p>Based on the foregoing, the Motion is CONTINUED to _____. Plaintiff is ORDERED to personally serve the moving papers on Joe and Christine Collinsworth no later than 16 court days before the continued hearing and file a proof of service no later than 5 court days prior to the continued hearing.</p> <p>Plaintiff to give notice.</p> |
| <b>12</b> | <b>25-01460537</b><br><br><b>Palomino vs. FCA US, LLC</b>                              | <p><b>Motion to Compel Production</b></p> <p>Plaintiff Eduardo Palomino's Motion to Compel Further Compliance with Code of Civil Procedure section 871.26 is DENIED as moot.</p> <p>The parties were ordered to file additional papers addressing any remaining issues related to the Motion after meet and conferring. No further papers were filed. Thus, the Motion is moot.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>15</b> | <b>24-01372004</b><br><br><b>The Irvine Company LLC vs. The Mugs Alton Irvine Inc.</b> | <p><b>Motion to Set Aside/Vacate Default and Judgment</b></p> <p>The motion of defendant Kyunghee Noh moves for an order to set aside and vacate the default and default judgment entered against her is GRANTED.</p> <p><u>Discussion.</u> Defendant Kyunghee Noh moves for an order: (1) vacating the entry of default and default judgment against her; (2) quashing enforcement of the judgment and abstract of judgment against her; (3)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |